

**CHAPTER xlix.**

An Act to transfer to and vest in the South Wales Electrical Power Distribution Company the undertaking of the Carmarthenshire Electric Power Company and for other purposes. A.D. 1905.
[30th June 1905.]

WHEREAS the South Wales Electrical Power Distribution Company (in this Act called "the Company") were incorporated by the South Wales Electrical Power Distribution Company Act 1900 (in this Act called "the Act of 1900") and empowered to construct and provide certain electrical generating stations for the storage distribution and supply of electricity within the county of Glamorgan and part of the county of Monmouth referred to in that Act as the area of supply and to raise seven hundred and fifty thousand pounds by shares and to borrow two hundred and fifty thousand pounds on mortgage:

And whereas by the South Wales Electrical Power Distribution Company Act 1902 (in this Act called "the Act of 1902") the Company were authorised to acquire additional lands for constructing a further station for generating electricity and the Act of 1900 was amended in other respects:

And whereas by the Carmarthenshire Electric Power Company Act 1903 (in this Act referred to as "the Act of 1903") the Carmarthenshire Electric Power Company (in this Act called "the Carmarthenshire Company") were incorporated and authorised to construct and provide certain electrical generating stations for the storing distribution and supply of electricity within the county of Carmarthen and to raise six hundred thousand pounds by shares and to borrow two hundred thousand pounds on mortgage but no part of that capital has been raised:

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— And whereas the Company have raised upwards of six hundred thousand pounds of capital and have constructed stations for generating electricity within the area prescribed by the Act of 1900 and are actively carrying out the powers conferred upon them by the said Act but as the area of the Carmarthenshire Company adjoins that of the Company it would tend to economical working in the future if the Carmarthenshire Company's undertaking was transferred to the Company as provided by this Act :

And whereas the Llanelly Urban District Council have spent and incurred a large sum in respect of the costs charges and expenses of and in connexion with the Electric Lighting Order referred to in the agreement set out in the Second Schedule to this Act and upon the negotiations for the said agreement the Company agreed to contribute to the council the sum mentioned in Article 1 thereof towards the said costs charges and expenses :

And whereas an agreement has been entered into between the Company and the Carmarthenshire Company for the transfer to and vesting in the Company of the undertaking property and powers of the Carmarthenshire Company and it is expedient that undertaking should be transferred to and vested in the Company as provided by this Act and that the agreements contained in the schedule to this Act be confirmed :

And whereas it is expedient that the Company be authorised to apply any surplus capital authorised to be raised under the Act of 1900 to the purposes of this Act and that certain provisions of the said Acts of 1900 and 1903 be repealed or amended and that the other powers contained in this Act be conferred upon the Company :

And whereas by the said Act of 1903 the powers of the Carmarthenshire Company for making a substantial commencement of the works for carrying out the powers of that Act were limited to two years from the passing thereof and the powers of the Carmarthenshire Company for providing generating stations sufficient in the opinion of the Board of Trade for supplying the whole or part of the area of supply were limited to four years from the passing thereof and it is expedient that such periods be extended as by this Act provided :

And whereas section 7 of the Act of 1903 authorises the Carmarthenshire Company to construct stations for generating electricity on the lands described in the First Schedule annexed to

that Act and by section 10 of the same Act the Carmarthenshire Company are authorised to purchase by agreement for the general purposes of their undertaking other lands than those described in the said schedule and it is expedient that the Company be empowered to construct stations for generating electricity on any of the lands acquired by agreement as provided by the Act of 1902 and not be limited to the lands described in the schedule to the Act of 1903: A.D. 1905.

And whereas Provisional Orders under the Electric Lighting Acts 1882 and 1888 have been granted to local authorities and other undertakers for the lighting of several districts and places within the Company's and the Carmarthenshire Company's area for the supply of electricity and the Company are desirous of having power to acquire by agreement such undertakings authorised by Provisional Orders so granted as the undertakers may be willing to transfer to them and to supply electric energy under such Provisional Orders in and to the districts and places to which the undertakings so transferred relate and it is expedient that the necessary powers should be conferred on the Company and such undertakers respectively and that section 12 of the said Act of 1902 and section 58 of the said Act of 1903 should be repealed as provided by this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the South Wales Electrical Power Distribution Company Act 1905 and the Acts of 1900 and 1902 and this Act may be cited together as one Act. Short title.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):— Incorporation of general Acts.

The Lands Clauses Acts;

The provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 except those not incorporated with the Act of 1900 the Act of 1902 or the Act of 1903.

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Interpreta-
tion.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Act of 1900 the Act of 1902 or the Act of 1903 have the same respective meanings as in those Acts mentioned.

Confirming
scheduled
agreement.

4. The agreement made between the Company of the one part and the Carmarthenshire Company of the other part as set forth in the First Schedule to this Act (in this Act referred to as "the scheduled agreement") is hereby confirmed and made binding upon the parties thereto.

Transfer to
Company of
powers of
Carmarthen-
shire Com-
pany and
dissolution
of that com-
pany.

5.—(1) On the passing of this Act and subject to the provisions thereof and of the scheduled agreement the rights powers privileges and authorities which by the Act of 1903 are conferred upon the Carmarthenshire Company exclusive of the powers of that company to raise capital by shares and by borrowing or by the creation and issue of debenture stock are by this Act transferred to and vested in the Company who may in their own name and under their own seal or under the hands of their directors secretary officers and servants exercise all those rights powers privileges and authorities as fully and effectually in all respects as the Carmarthenshire Company might have exercised the same if this section of this Act had not been passed.

(2) Subject to and in accordance with the provisions of the scheduled agreement the Carmarthenshire Company shall as between themselves and the Company discharge all liabilities incurred by or on behalf of that company and thereby agreed to be discharged by them (including the costs charges and expenses of and incident to the preparing applying for and obtaining the Act of 1903) and as from the passing of this Act the Company shall as between themselves and the Carmarthenshire Company hold the undertaking of the Carmarthenshire Company freed and discharged from all such debts liabilities obligations and engagements of the Carmarthenshire Company and from all claims and demands whatsoever on the part of any of the creditors of that company or of any other person or persons in respect of any such debt or liability and thereupon that company shall be dissolved except for the purpose of winding up their affairs.

Carmarthen-
shire under-
taking to
become after

6. Subject to the provisions of this Act all the provisions of the Act of 1903 except the sections of that Act relating to the constitution of the Carmarthenshire Company and to the

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SCHEDULES referred to in the foregoing Act.THE FIRST SCHEDULE.

THIS INDENTURE made the first day of April one thousand nine hundred and five between the CARMARTHENSHIRE ELECTRIC POWER COMPANY of Royal Chambers Queen Street in the borough of Cardiff in the county of Glamorgan (who with their successors and assigns are herein-after included in the term "the Carmarthenshire Company") of the one part and the SOUTH WALES ELECTRICAL POWER DISTRIBUTION COMPANY of Royal Chambers Queen Street Cardiff aforesaid (who with their successors and assigns are herein-after included in the term "the South Wales Company") of the other part.

WHEREAS by the Carmarthenshire Electric Power Company Act 1903 (herein-after referred to as "the Special Act") the Carmarthenshire Company was incorporated for the purpose of the production transformation storage and distribution of electricity within the county of Carmarthen and with the powers and authorities in the said Act specified :

And whereas by the South Wales Electrical Power Distribution Company Act 1900 the South Wales Company was incorporated for the purpose of the production transformation storage and distribution of electricity within the county of Glamorgan and part of the county of Monmouth and with the powers and authorities in the said Act specified :

And whereas the area of supply of the Carmarthenshire Company is contiguous to the district supplied by the South Wales Company :

And whereas the Carmarthenshire Company are desirous of selling and transferring to the South Wales Company and the South Wales Company is desirous of purchasing the undertaking of and the powers conferred on the Carmarthenshire Company by the special Act together with the benefit of any contracts or arrangements entered into or other assets acquired by the Carmarthenshire Company in connexion with the special Act upon the terms and conditions herein-after appearing :

able extend and apply to the council and the urban district and the areas (herein-after called "the added areas") coloured red and shown on the plan marked No. 2 dated the fifteenth day of June one thousand nine hundred and three and signed by the Chairman of Committees of the House of Lords to which the Bill for the Act of 1903 was referred and to the streets roads bridges wharves sewers drains pipes waterworks watermains channels conduits apparatus and other property vested in or under the jurisdiction or control of the council or within the district of the council or the added areas as if those provisions had been expressly re-enacted herein with reference thereto.

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14. The agreement dated the twenty-third day of March one thousand nine hundred and five between the council and the Company contained in the Second Schedule to this Act is hereby confirmed and made obligatory and binding upon the council and the Company respectively and their and each of their successors and assigns to all intents and purposes and the sum referred to in Article 1 of the said agreement as payable by the Company to the council shall upon and after the receipt thereof by the council be applied by the council in such manner as the Local Government Board may direct or approve.

Confirma-
tion of
agreement
between
Company
and Llanelly
Urban Dis-
trict Council.

15. The Company may apply for or towards the purposes of this Act and the recited Acts to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the authority of the Act of 1900 and which are not required for the purposes to which they are by the Act of 1900 made specially applicable.

Power to
apply funds.

16. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company.

Costs of Act.

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(D) In the event of any Provisional Order and the undertaking thereby authorised being acquired by the Company under this section the provisions of the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899 shall subject to any modifications of those Acts made by any such Order apply to that undertaking and where the undertakers are a local authority the undertaking shall be deemed to be within the provisions of section 2 of the Electric Lighting Act 1888 provided that the periods at which the local authority may under the provisions of the said section repurchase the undertaking or so much thereof as is within their jurisdiction shall be reckoned from the date of the acquisition thereof by the Company :

- (2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

For protection of
Llanelly
Gas Light
Company.

12. The following provisions for the protection of the Llanelly Gas Light Company (herein-after called "the Llanelly Company") shall in addition to any other provisions as to mains pipes and other apparatus contained in any Act incorporated with this Act unless otherwise agreed between the Company and the Llanelly Company be observed and have effect (that is to say) :—

The Company shall make full compensation to the Llanelly Company for any loss or damage which may occur to their mains pipes and apparatus by fusion or electrolytic action caused by the exercise of any of the powers by this Act conferred upon the Company.

For protection of urban
district
council of
Llanelly.

13. The following provisions for the protection of the urban district council of Llanelly (in this section called "the council") who are authorised distributors within the area of supply of the Company in addition to the other provisions contained in this Act or the Act of 1903 or any Act incorporated with this Act or with the Act of 1903 shall apply (that is to say) :—

The provisions of the section of the Act of 1903 the marginal note whereof is "For protection of county council of Carmarthen" shall mutatis mutandis and so far as applic-

the undertaking authorised by such Provisional Order and the powers rights authorities and privileges of the undertakers under any such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking powers rights authorities and privileges to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking powers rights authorities and privileges they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such Provisional Order shall apply to the supply of electricity by the Company within the area of supply as defined by such Order Provided that—

(A) In the event of the Company acquiring from any local authority or other undertakers any Provisional Order within the area of supply of the Company as extended by this Act they shall be allowed to charge for electric energy given under such Order such rates as any such Order prescribes but for power the rates charged by the Company shall not exceed those prescribed by the recited Acts;

(B) In the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith;

(c) None of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purposes of supplying any other portion of the Company's area of supply as extended by this Act;

A.D. 1905. — generating electricity provided that the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased held or taken on lease by agreement under the said section 10 and nothing in this section shall authorise the Company to construct a station for generating electricity outside the area of supply as defined by the Act of 1903.

As to qualification of directors.

10. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 incorporated with the Act of 1900 no person shall be disqualified from being elected acting or voting as a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company or any loan of money to the Company made under the provisions of the recited Act or this Act nor shall any director cease from voting or acting as a director of the Company by reason of his accepting any such office or place of trust or profit under the Company or becoming interested in any such contract with the Company. Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise either before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

Transfer of undertakings of local authorities and others to Company.

11. Section 12 of the Act of 1902 and section 58 of the Act of 1903 are hereby repealed and in lieu thereof the following provisions shall have effect (viz.) :—

- (1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 shall have been or may be granted relating to a district or place within the Company's area of supply as extended by this Act

share and loan capital of that company shall (so far as applicable) have effect as if the Company had been named throughout that Act instead of the Carmarthenshire Company and the undertaking authorised by the Act of 1903 shall subject to the provisions of the said Act and of the scheduled agreement be executed worked and managed by the Company as part of their undertaking as if the undertaking of the Carmarthenshire Company had been part of the undertaking of the Company authorised by the Act of 1900.

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transfer part
of under-
taking of
Company.

7. Section 50 of the Act of 1903 which prohibits the Carmarthenshire Company from supplying electricity for any purpose within the district of Llanelly and also within the areas shown on a plan signed by the Chairman of Committees of the House of Lords (herein-after together called "the added area") except under certain conditions is hereby repealed and from and after the passing of this Act the area of supply of the Carmarthenshire Company as defined by section 35 of the said Act of 1903 is hereby extended by adding thereto the added area and on the transfer of the Carmarthenshire undertaking to the Company in accordance with the agreement contained in the schedule to this Act taking place the Company may exercise and enjoy all the powers of the Carmarthenshire Company conferred upon them by the said Act of 1903.

Repeal of
section of
Act of 1903
prohibiting
supply of
electricity to
Llanelly and
district and
powers for
Company to
supply dis-
trict.

8. The period limited by section 60 of the Act of 1903 for making a substantial commencement of the works for carrying out the powers granted to the Carmarthenshire Company by the said Act is hereby extended to a period of two years from the eleventh day of August one thousand nine hundred and five and the period prescribed by the said section of the same Act for the Carmarthenshire Company providing generating stations sufficient in the opinion of the Board of Trade for supplying the whole or part of the area of supply is hereby extended to a period of two years from the eleventh day of August one thousand nine hundred and seven.

Extension of
time for
Company
commencing
works and
providing
generating
stations
under Act
of 1903.

9. The powers conferred on the Carmarthenshire Company by section 7 of the Act of 1903 for the construction of stations for generating electricity on the lands described in the First Schedule to that Act are hereby extended and the Company may on any other lands acquired by agreement under the authority of section 10 of the same Act construct stations for

Amendment
of sections 7
and 10 of
Act of 1903.

And whereas the authorised share and loan capital of the South Wales Company and the amounts thereof respectively issued up to the present time are as follows (that is to say):—

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	Authorised Capital.	Issued Capital at 31st December 1904.
Ordinary Shares - - - -	£ 750,000	£ 455,000
Five per cent. Debentures - - -	250,000	150,000

Now this indenture witnesseth and it is hereby agreed between the companies parties hereto as follows (that is to say):—

1. The Carmarthenshire Company in consideration of the payment by the South Wales Company herein-after mentioned do undertake to sell assign and transfer to the South Wales Company and the South Wales Company to purchase and accept from the Carmarthenshire Company firstly all the undertaking and powers granted to the Carmarthenshire Company by the special Act and secondly any contracts or arrangements entered into or other assets acquired by the Carmarthenshire Company in connexion with the special Act freed and discharged from any claim by the Carmarthenshire Company or any other person or persons whatsoever in respect of the costs charges and expenses preliminary or incidental to or arising out of the promotion and obtaining of the special Act.

2. The consideration to be paid by the South Wales Company for such sale and the powers conferred by this agreement to be the sum of one thousand pounds in cash by the South Wales Company on the date of the execution of these presents and the issue of eighteen thousand pounds in fully paid shares of the South Wales Company within fourteen days after the sanction of Parliament to this indenture shall have been obtained Provided always and it is hereby agreed that the holders of the said eighteen thousand pounds in shares shall not in any case dispose of or part with the same or any of them before the thirtieth day of June one thousand nine hundred and five if the said shares be issued before that date and it is also agreed that the said shares shall not be held to rank for dividend until after the first day of July one thousand nine hundred and five.

3. This agreement is conditional upon (1) a special resolution confirming the same being passed by a majority of three-fourths of the shareholders of the Carmarthenshire Company and the South Wales Company at extraordinary meetings of each of the said companies held for that purpose and (2) upon an Act of Parliament being passed as herein-after mentioned Should this agreement not be confirmed as aforesaid or should the necessary Act of Parliament not be passed this agreement and everything herein contained shall be void and of no effect and the said sum of one thousand pounds shall be forthwith repaid to the South Wales Company.

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4. The South Wales Company shall in the present session of Parliament at their own cost apply either (at their option) by a separate Bill or by provisions inserted in a Bill relating to other objects for an Act of Parliament enabling them to effect the purchase and transfer hereby agreed and if necessary to create and issue the shares mentioned in Article 2 hereof and generally to carry into effect the provisions of these presents and the Carmarthenshire Company shall give every reasonable assistance to the South Wales Company to enable the latter to obtain the Act. Provided always that these presents are subject to the approval of Parliament and to the express condition that if during the passage of the said Bill through Parliament any material alteration is inserted, or required by Parliament either in this agreement or in the provisions of the said Bill affecting the subject matter thereof or any requirement be made by Parliament with which either of the said companies shall be unable to comply it shall be competent to either of the said companies upon giving written notice to the other company within fourteen days after such alteration or requirement shall have been inserted or required or made to withdraw from this agreement and declare the same to be no longer binding on them and thereupon the same shall be null and void and the provisions of the Bill relating to the premises shall in such event be withdrawn.

In witness whereof the common seals of the parties hereto have hereunto been respectively affixed by order of the respective boards of directors thereof the day and year first above written.

The common seal of the South Wales Electrical
Power Distribution Company was hereunto
affixed in the presence of

Seal of the
South Wales
Electrical Power
Distribution
Company.

R. FORREST

Chairman.

GEO. P. TUTCHER

Secretary.

The common seal of the Carmarthenshire
Electric Power Company was hereunto
affixed in the presence of

Seal of the
Carmarthenshire
Electric Power
Company

WALTER S. B. M'LAREN

MARK ROBINSON

FRANK J. HARRIS

Secretary.

Directors.

THE SECOND SCHEDULE.

A.D. 1905.

THIS INDENTURE made the twenty-third day of March one thousand nine hundred and five between the LLANELLY URBAN DISTRICT COUNCIL (herein-after called "the Council") of the one part and the SOUTH WALES ELECTRICAL POWER DISTRIBUTION COMPANY of Royal Chambers Queen Street in the county borough of Cardiff (who with their successors and assigns are herein-after included in the term "the Power Company") of the other part.

WHEREAS the Council have obtained a Provisional Order under the Electric Lighting Acts 1882 and 1888 confirmed by the Electric Lighting Orders Confirmation Act (No. 4) of 1891 and herein-after called "the Electric Lighting Order" and under the Electric Lighting Order certain rights powers and privileges for and in connexion with the supply of electricity within their district are vested in the Council:

And whereas the Power Company are promoting in the present session of Parliament a Bill for (inter alia) the purpose of supplying electricity throughout the county of Carmarthen and it is proposed by the said Bill that section 50 of the Carmarthenshire Electric Power Act 1903 which prohibits the Carmarthenshire Electric Power Company from supplying energy within a certain area therein prescribed including the district of the Council except under certain conditions shall be repealed:

And whereas the Council have presented a petition against the said Bill now before Parliament and have been requested by the Power Company to withdraw the same, which the Council have agreed to do subject to the sanction of Parliament and the execution of these presents which it is intended shall be scheduled to and form part of and be confirmed by the said Bill:

Now this indenture witnesseth that in pursuance of the said agreement the parties hereto do hereby respectively covenant and agree with each other as follows (that is to say):—

1. The Power Company shall pay to the Council the sum of one thousand pounds by the instalments and at the times following namely The sum of five hundred pounds within twenty-eight days of the Royal Assent to the said Bill and the further sum of five hundred pounds within six calendar months of the said Royal Assent.

2. In the event of the said Bill receiving the Royal Assent the Council shall have both of and shall exercise (by notice in writing left with or

A.D. 1905, addressed to the Power Company and sent to them at their said address by prepaid letter post on or before the first day of January one thousand nine hundred and six) either of the following options (that is to say):—

OPTION (A) They the Council may require the Power Company to take and accept a transfer of the Electric Lighting Order by the Council to the Power Company who shall thereupon execute and do all deeds documents acts and things which shall be necessary or may be required by the Council for the purpose of vesting in the Power Company the said Order and the Power Company shall forthwith at their own expense carry out the electric lighting of the district of the Council under the powers contained in the said Order and all other powers them thereunto enabling and shall fulfil all the requirements of the district of the Council for electric energy for lighting purposes :

OPTION (B) In the alternative the Council may require the Power Company to supply and the Power Company shall forthwith supply to the Council at such times and during such hours as the Council may direct and the Council shall thereupon take in bulk all such energy as the Council may from time to time require for the purpose of enabling them to carry out and fulfil their powers and obligations under the Electric Lighting Order or otherwise with respect to the supply of electrical energy to the district of the Council.

3. In the event of the Council exercising Option (A) the following provisions shall have effect:—

(A) The Power Company shall accept a transfer of the Electric Lighting Order in the form of the transfer deed already prepared and for the purposes of identification signed by Messrs. Downing and Handcock and Mr. H. W. Spowart with such variations therein or additions thereto as the Board of Trade may direct to be made and the Power Company shall upon the tender to them by the Council of the said deed of transfer duly executed by the Council make to the Council the payments therein specified and do all such acts and things as the Council may reasonably be advised are necessary to effectuate such transfer :

(B) The Power Company shall from time to time as and when required in writing by the Council so to do forthwith supply during such hours and otherwise as the Council may direct and the Council shall thereupon accordingly take energy for public lighting of any or all of the following streets and public places in Llanelly that is to say Station Road Salamanca Road Mina Street Murray Street Cowell Street Stepney Street Market Street Park Street Thomas Street Vaughan Street Hall Street Town Hall Square

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Union Street and Church Street the Market Town Hall Athenæum Hall Nevill Memorial and such other streets and public places within the district of the Council as the Council may from time to time direct and the Power Company shall also from time to time as and when required in writing by the Council so to do forthwith supply during such hours as the Council may direct and the Council shall thereupon accordingly (so far as they legally can or may) take or will to the best of their ability procure to be taken energy to light any or all of the following public buildings:—the Council's schools (provided by or under the control of the Council and their Education Committee) intermediate schools hospital and union workhouse together with such other public buildings within the district of the Council as are or may be supported wholly or in part out of the public rates and for the purposes of this clause the expressions "energy for public lighting of any or all of the following streets and public places" and "energy to light any or all of the following public buildings" shall respectively include the supply and installation (both with regard to arc and incandescent lighting) of all such lamps holders posts carriers pillars poles brackets plain fittings resistances switches cables wires cut-outs measuring instruments service boxes service cables junction boxes distributing boards and all such accessories and things as are properly necessary for the delivery of the electric current at the lamps on the posts pillars and brackets and so far as the public lighting of the said streets and places (but not public buildings) is concerned the Power Company shall supply maintain clean trim replace and repair the arc and incandescent lamps on such posts pillars and brackets including the supply of carbons to the arc lamps Provided that the Power Company shall be at liberty to use free of charge for the lighting of the streets and public places such of the lamp-posts brackets and other fittings now used there and belonging to the Council as may be suitable for the purpose The price to be charged by the Power Company to the Council or other public body for public lighting of streets and public places and the lighting of public buildings (defined as aforesaid) shall not exceed a sum of twopence per unit added to the lowest sum which shall for the time being be charged for energy in bulk for the like purposes in South Wales The price to be charged by the Power Company to private consumers for lighting shall not exceed fivepence per unit or such sum as may be charged for the like service by the Power Company in South Wales whichever shall be lower The price to be charged by the Power Company for heat and power (whether for public or private purposes) shall not exceed twopence per unit:

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(c) The Power Company shall from time to time as and when required in writing by the Council to supply energy for the purposes of public lighting of streets or public places or lighting of public buildings as set forth in section (B) of this clause forthwith lay down suitable and sufficient distributing mains for the purposes of supply of such streets public places or public buildings as the Council may have required the Power Company so to supply as aforesaid and the Power Company shall efficiently maintain all distributing mains within the district of the Council :

(D) The Power Company shall before carrying out any or all of the objects of the Electric Lighting Order or the works authorised by such Order submit the plans and specifications for the same to the Council for the inspection consideration and examination by the Council or their engineer for the time being :

(E) The Power Company shall completely carry out all works matters and things for the purpose of effectuating these presents and carrying out all their obligations under these presents and the Electric Lighting Order with reference to the public lighting of the streets and places mentioned in section (B) of this clause on or before the first day of June one thousand nine hundred and six and in this respect time shall be of the essence of the contract :

(F) The Council may at any time after the first day of June one thousand nine hundred and six by six months previous notice in writing addressed to the Power Company require the Power Company to sell and the Power Company shall thereupon transfer and sell to the Council the said Electric Lighting Order and all their works plant and undertaking within the district of the Council so far as the same shall or may relate to the supply of electric energy within the district of the Council under the powers conferred by the Electric Lighting Order or under this agreement (but excepting any other works or plant constructed or laid down under the Power Company's special Acts and used solely for power purposes) at a price equal to the aggregate amount of all the capital expenditure properly incurred of the Power Company with a further sum equal to one tenth of such amount.

4. In the event of the Council exercising Option (B) or in the event of the Council exercising their powers of purchase conferred on them by section (F) of clause 3 the following provisions shall have effect :—

(A) The Power Company shall as from the date herein-after fixed for the commencement of the supply of energy under these presents continuously supply the Council with electrical energy to such an amount as the Council shall from time to time by notice in writing require :

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- (B) The energy shall be supplied to the Council at such point or points not exceeding three in all and at such pressures within its area of supply as shall hereafter be fixed by the parties to this agreement :
- (C) The supply of energy shall commence on or before the first day of June one thousand nine hundred and six or on such later date (if any) as shall be agreed on in writing by the parties hereto :
- (D) The minimum amount of energy to be taken by the Council under these presents shall be fifty thousand units per annum according to the definition of the term "unit" as set forth in the Second Schedule to the Power Company's Act of 1900 and unless the Council shall have signified in writing its desire to receive a larger supply the Power Company shall as from the date fixed as aforesaid for the commencement of the supply furnish to the Council and the Council shall accept and pay for the aforesaid minimum supply of fifty thousand units per annum :
- (E) The Council shall be entitled from time to time by notice in writing to the Power Company to require the supply of energy to be increased or reduced to a point not less than its aforesaid minimum and the Power Company shall regulate the supply accordingly Provided always that the Power Company shall not be required at any one time to supply energy to the Council at a greater rate than three hundred and fifty kilowatts or such greater rate of supply as shall for the time being be mutually agreed to :
- (F) Subject to the conditions contained in clause (G) of this agreement the price to be charged to the Council by the Power Company for the supply of energy shall be at the uniform covering rate of one penny and three-eighths of a penny per unit for the current direct from the Power Company's high-tension mains The amount of energy supplied shall be ascertained by an approved "watt" or energy meter or meters and the accounts shall be made up and sent in by the Power Company at the end of every month and the amount found due shall be paid by the Council within twenty-one days thereafter subject to a cash discount of two and a half per cent. :

In the event of any dispute between the Power Company and the Council as to the accuracy of the meter or meters such meter or meters shall be tested by an official of the Board of Trade and the account shall be adjusted in accordance with his finding and certificate :

The whole expense of such testing and adjustment if the meter or meters should prove to be correct shall be borne by the Council but if the meter or meters should be found to be incorrect the said expense shall be borne by the Power Company :

Power Distribution Company Act, 1905.

A.D. 1905.

There shall be two sets of metres of which one shall be provided by and at the expense of the Council and the other by and at the expense of the Power Company:

- (G) Should the minimum quantity of energy of fifty thousand units per annum to be supplied to the Council by the Power Company be exceeded at the request of the Council then the maximum quantity of energy to be supplied at any one time shall be increased in the proportion of one hundred kilowatts for each one hundred thousand units added to the aforesaid minimum supply of units. Should the aforesaid minimum of fifty thousand units be exceeded the following rates or such lower rates as may for the time being be in force in South Wales shall apply:—

Quantities.	Price per Unit for Untransformed Current.
Under 250000 units per annum - - -	1 $\frac{3}{8}$ d.
250000 to 500000 units per annum - - -	1 $\frac{1}{4}$ d.
500000 to 1000000 units per annum - - -	1 $\frac{1}{8}$ d.
Over 1000000 units per annum - - -	1d.

- (H) The covering rate herein-before referred to of one and three-eighths of a penny per unit and the rates in the above-mentioned scale are the rates to be charged for the current direct from the Power Company's high-tension mains but the Power Company hereby agrees to transform this current in such manner and to such extent as the Council may desire for the electric light undertaking and as may be required by the Council's statutory obligations under their Provisional Orders or Acts of Parliament or by the regulations or directions from time to time of the Board of Trade the Power Company charging for such transformation the extra sum of one-eighth of a penny per unit. Should the Power Company transform then the quantity of current to be charged for to be measured by meter or meters on the Council's side of the transforming apparatus the Power Company to find fix work repair and maintain at their own expense in all things the necessary transforming apparatus and accessories:

- (I) The Power Company shall grant to the Council as favourable terms and conditions for the supply of electricity as those granted by the Power Company to any other authority company or person whose circumstances are similar.

5. Upon the Council exercising either of the aforesaid options the Power Company shall supply to the district council direct current at five hundred volts suitable for three-wire distribution.

6. In default of the due performance of this contract the Power Company shall pay to the Council the sum of one hundred and five pounds as and for liquidated damages for the breach hereof in addition to any other penalties forfeitures or damages to which the Power Company may be liable under these presents or otherwise. A.D. 1905.

7. The Power Company shall in any event pay and discharge all costs of and incidental to the negotiations for and preparation and execution of these presents and any documents necessary to effectuate the objects hereof.

In witness whereof the Company and the Council have hereunto caused their respective common seals to be affixed the day and year first before written.

The common seal of the South Wales Electrical
Power Distribution Company was hereunto
affixed in the presence of }

Seal of the
South Wales
Electrical Power
Distribution
Company.

R. FORREST

. Chairman.

GEO. P. TUTCHER

Secretary.

The common seal of the Llanelly Urban District
Council was hereunto affixed in the presence of }

Seal of the
Urban District
Council of
Llanelly.

D. JAMES DAVIES

Chairman.

HENRY W. SPOWART

Clerk.

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